

AUTHORITY

PERSONAL DATA

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Date

Our reference

Your letter of

July 11, 2023

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April 17, 2023

Contact person Your reference

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Subject

Amendment of the DNA Investigation Act for Convicted Persons and the Code of Criminal Procedure in connection

with the introduction of provisional collection of biological material and several other amendments related to DNA investigation

Dear Ms. Yesilgoz-Zegerius,

In a letter dated April 17, 2023, the Dutch Data Protection Authority (AP) was consulted pursuant to Article 35b,

first paragraph, under b, of the Police Data Act (Wpg) in conjunction with Article 27, third paragraph, of the Judicial and

Criminal Procedure Data Act regarding the draft amendment of the DNA Investigation Act for Convicted Persons and the

Code of Criminal Procedure in connection with the introduction of provisional collection of biological material and several

other amendments related to DNA investigation (hereinafter: the draft).

The AP has examined whether the draft regarding the processing of personal data is in accordance with the Charter of

Fundamental Rights of the European Union (EU), the general legal principles of the EU, Directive 2016/680, and other

relevant law, whereby it must be sufficiently demonstrated that, among other things, the principle of proportionality is

met, by:

1.
the draft being suitable for achieving the pursued objective of general interest or the requirements of protecting the rights and freedoms of others (suitability);
2.
the objective not being reasonably achievable in an equally effective manner by other means that infringe less on the fundamental rights of those involved (subsidiarity);
3.
the interference not being disproportionate to that objective, which particularly implies a balancing of the importance of the objective and the severity of the interference (proportionality);
4.
the draft being sufficiently clear and precise regarding the scope and being predictable in its

application

(legal certainty);

5.

the draft sufficiently indicating under what circumstances and conditions personal data may be processed,

thus providing safeguards for the protection of personal data (substantive and procedural safeguards); and

6.

the draft being binding under national law (constitutionality).

The AP notes that the provisional collection of biological material from all adult suspects of a preliminary detention

offense during the period of detention for investigation or pre-trial detention does not meet the requirements of

subsidiarity, proportionality, and the requirement for substantive and procedural safeguards (points 2, 3, and 5) and that

allowing lighter forms of DNA kinship investigation in preliminary detention offenses does not meet the requirement of

legal certainty and substantive and procedural safeguards (points 4 and 5). The AP has objections to these points and

advises against proceeding with the procedure unless the objections are resolved.

Main Points

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The DNA Act aims to prevent, detect, prosecute, and adjudicate punishable offenses based on DNA profiles by

collecting biological material from convicted individuals for the purpose of DNA investigation. The justification for

the infringement on physical integrity, personal privacy, and the protection of personal data is the conviction for a

preliminary detention offense. According to the government, it is established that the individuals targeted by the

DNA investigation have been capable of committing a serious crime. The DNA material is used to detect committed

and potential future offenses and to deter convicted individuals from committing further offenses.

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If biological material is collected from a suspect before a conviction, that justification ceases to apply.

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Therefore, it must be assessed whether the infringement on the fundamental rights of suspects can be justified in

another way. This is only the case if the infringement is proportional and strictly necessary in relation to the

objective of the DNA Act.

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The draft aims to collect biological material from all suspects of a preliminary detention offense who are held for

investigation or have been placed in pre-trial detention. The expectation is that in such cases, in slightly less than 50

percent of the cases, the collected biological material will need to be removed again, among other reasons because a

suspect is ultimately not convicted.

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In the opinion of the AP, this is not proportional and not limited to what is strictly necessary.

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According to the AP, those requirements are met if the collection of biological material from suspects is

limited to

suspects who are expected to be untraceable after conviction and who are expected to fall under the scope of the DNA Act.

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This prevents biological material from being collected from many suspects, while the suspect is later not convicted

or for other reasons does not fall under the scope of the DNA Act (for example, because a fine is imposed).

Parliamentary Documents II, 2002/03, 28685, no. 3, p. 2.

2/12

AUTHORITY IT

PERSONAL DATA

Date

Our reference

Scope of the draft

The DNA Research Act for Convicted Persons (hereinafter: the DNA-V Act), which has been in effect since 2005, allows for the collection of cellular material from individuals convicted of a crime as described in Article 67, first paragraph, of the Code of Criminal Procedure (hereinafter: Sv) (hereinafter also referred to as a preliminary detention offense) for DNA research purposes to aid in the prevention, investigation, prosecution, and adjudication of criminal offenses and the identification of a corpse. To this end, it can be examined whether the DNA profile of the convicted individual corresponds with another processed DNA profile. The public prosecutor orders the collection of cellular material as soon as possible after the conviction for the purpose of determining and processing the DNA profile. If the convicted individual is in detention, the cellular material is collected while in detention. In all other cases, the convicted individual must report for the collection of cellular material. The cellular material and the profile are then recorded in the DNA database.

Research by the WODC shows—despite intensive improvements in the implementation of the DNA-V Act—that not all convicted individuals for whom an order for the collection of cellular material has been issued have had cellular material collected. An impact analysis conducted in 2019 shows that approximately 87% of the 28,000 orders issued annually under the DNA-V Act actually resulted in the collection of cellular material. The missing DNA profiles are, according to the researchers from the WODC, primarily due to the fact that a portion of the convicted individuals, particularly those without a Dutch address, are untraceable. According to the researchers, this is no longer or hardly at all due to the manner in which the DNA-V Act is implemented.

The government considers it desirable to raise this percentage to 99 percent. To achieve this, it is proposed to collect cellular material from suspects of a preliminary detention offense before a conviction occurs (hereinafter also referred to as the provisional collection of cellular material). The moment of collection is before the expiration of the period for detention for investigation or pre-trial detention, provided that there is still suspicion of a preliminary detention offense at that time. The cellular material is stored "physically." A digital administration is linked to the cellular material, so it is always clear from whom cellular material has been collected and where it is stored.

For example, buccal swabs, blood, or hair roots.

' Act of September 16, 2004, regulating DNA research for convicted persons (DNA Research Act for Convicted Persons), Stb. 2004, 465. Effective from February 1, 2005. See Article 2, sixth paragraph.

' This concerns a conviction as referred to in Article 1, part c, of the DNA-V Act; a community service order, prison sentence, or measure must have been imposed.

' Article 2, fifth paragraph of the DNA-V Act.

6 There are a number of exceptions to this; the collection of cellular material for the purpose of determining and processing a DNA profile is omitted if a DNA profile has already been determined or if it can reasonably be assumed that determining and processing the DNA profile will not be significant for the prevention, investigation, prosecution, and adjudication of criminal offenses of the convicted individual. See Article 2, first paragraph, parts a and b of the DNA-V Act.

As referred to in Article 14, first paragraph, of the Decree on DNA Research in Criminal Cases.

P. Kruize and P. Gruter, 'Eating Soup with a Fork. Evaluation of the DNA Research Act for Convicted Persons,' WODC 2019.

M. Goedvolk, J. Nijhuis, M. Sabiran, and W. Stapel, 'Report on Scenario Analysis of Provisional Collection of Cellular Material from Suspects, Significant 2019 (appendix to Parliamentary Documents /2018/19, 32168, M).

10 P. Kruize and P. Gruter, 'Eating Soup with a Fork. Evaluation of the DNA Research Act for Convicted Persons,' WODC 2019.

" Explanation, p.1.

According to Article 67, first paragraph, of the Code of Sv.

3/12

AUTHORITY

PERSONAL DATA

Date

Our reference

cell material is located. The cell material may not yet be used for determining a DNA profile. Only after conviction does the public prosecutor order the determination and processing of a DNA profile and the inclusion of the cell material and the DNA profile in the DNA database." If no conviction follows in the sense of the DNA Act, the cell material will be removed.⁴ Thus, cell material is also taken from a significant number of suspects who will not be convicted. In some cases, no conservatory cell material is taken, for example, if the suspect is a minor, the suspect can no longer be regarded as a suspect due to a crime as described in Article 67, first paragraph, of the Code of Criminal Procedure, a fine is imposed for the crime, or if cell material has already been taken.¹⁵

The concept also aims to limit the application of the DNA Act concerning juvenile offenders. The reasoning for this, according to the explanation, is that individuals tried under juvenile criminal law are more often imposed a community service than a fine. Since the DNA Act is applicable if a community service is imposed, but not if a fine is imposed, juveniles more frequently fall under the DNA Act than individuals tried under adult criminal law.¹ In light of this, it is proposed to amend the DNA Act so that the obligation to have cell material taken for those tried under juvenile criminal law arises only when a community service of 40 hours or more is imposed (or if a prison sentence or measure is imposed, in accordance with the current DNA Act).

Additionally, the concept aims for three amendments to the regulation on DNA research in the Code of Criminal Procedure. This regulation is separate from the DNA Act; it concerns powers that can be employed during an ongoing investigation. It is made possible that the forced taking of cell material from suspects and convicted individuals who are part of identical twins or multiples primarily occurs through blood sampling.⁷ It is also proposed that for lighter forms of DNA kinship research (for example, when a limited number of DNA profiles are compared), a lighter suspicion criterion should apply, namely the criterion of suspicion of a preliminary detention offense.⁸ Finally, it is proposed that the profiles determined in the context of DNA kinship research should also be included in the DNA database. This has not yet been done.⁹

" Except when a DNA profile of the person concerned has already been processed in accordance with the Code of Criminal Procedure or the GDPR, or if it is reasonably likely that determining and processing his DNA profile, given the nature of the crime or the special circumstances under which the crime was committed, will not be significant for the prevention, detection, prosecution, and adjudication of criminal offenses of the convicted individual.

"" Except for a number of exceptions, for example, when the cell material is processed on the basis of another legal basis (e.g., Article 151a of the Code of Criminal Procedure),

15 Article I, under B (Article 2), first paragraph, parts a-d of the concept.

Indeed, convicted individuals who have been imposed a fine do not have to provide cell material, while those who have been imposed a community service do.

" To this end, a delegation basis is adjusted so that this can be determined in the Decree on DNA Research in Criminal Cases.

Article 67, first paragraph, Code of Criminal Procedure.

'9 The reason for this is that at the time of the establishment of that regulation, the importance of storing those profiles was not considered, see p.23 of the explanation.

4/12

AUTHORITY

PERSONAL DATA

Date

Our reference

Z2023-02227

legal framework

With the provisional collection of cellular material, an infringement will be made on the personal privacy of suspects. For a justified infringement on personal privacy, it is required according to Article 7 in conjunction with Article 52 of the Charter of Fundamental Rights of the EU (Charter) and Article 8 of the European Convention on Human Rights (ECHR) that the interference has a basis in law, is foreseeable, and is necessary for legitimate purposes in a democratic society. Article 8 of the Charter furthermore states that everyone has the right to the protection of personal data concerning them. Based on Article 52, paragraph 3, and Article 53 of the Charter, Articles 7 and 8 of the Charter must be interpreted as providing at least the same level of protection as Article 8 ECHR.

In addressing the question of which processing falls under which application regime, the AP assumes the following. The processing of DNA material for investigative purposes, conducted by an authority that qualifies as a competent authority within the meaning of Article 3, part 7 of Directive 2016/680, falls under the scope of the Directive. The Directive has so far—concerning Articles 7 and 8 of the Charter—led to a ruling regarding the storage and processing of cellular material and DNA material. For the rest, one must rely on the case law of the European Court of Human Rights (ECHR). The ECHR has addressed the admissibility of the collection of cellular material and/or DNA testing of suspects and convicted individuals based on Article 8, paragraph 2, of the ECHR in several rulings. The Mevis Committee and Professor Hirsch Ballin have already extensively discussed the possibilities of allowing provisional cellular collection from suspects within the frameworks of Article 8, paragraph 2, ECHR. Therefore, the AP limits its advice to the main points and as much as possible to the issues that are relevant to the advice.

Legitimate purpose

The purpose of the legislator with the DNA Act is to prevent, investigate, prosecute, and adjudicate criminal offenses where cellular material from perpetrators is left behind. The premise here is that this goal can best be achieved if as many convicted individuals as possible who fall within the scope of the law are included.

"Article 52 of the Charter states: Restrictions on the exercise of the rights and freedoms recognized in this Charter must be provided for by law and respect the essence of those rights and freedoms. In accordance with the principle of proportionality, limitations may only be imposed if they are necessary and genuinely meet objectives recognized by the Union of general interest or the requirements for the protection of the rights and freedoms of others."

21 EU law may provide broader protection, see Article 52, paragraph 3, of the Charter.

See for the exact description of the purposes Article 11, paragraph 1, of the Directive (note 23).

23 Directive (EU) 2016/680 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons in relation to the processing of personal data by competent authorities for the purposes of preventing, investigating, detecting, and prosecuting criminal offenses or the execution of criminal penalties, and on the free movement of such data, and repealing Framework Decision 2008/977/JHA of the Council, OJ L 119/89.

24 CJEU January 26, 2023, C-205/21 (VS. v. Bulgaria).

25 P.A.M. Mevis, S. Bakker, J.S. Nan, B.A. Salverda, and J. Verbaan, "Research into the legal sustainability of the collection and storage of cellular material from suspects at the time of their detention and the storage thereof with a view to their possible conviction." Annex to Parliamentary Documents 2016/17, 29279, no. 357.

26 M. Hirsch Ballin, "Advice on the assessment of the legal sustainability of alternative scenarios for the implementation of the DNA Research Act for convicted individuals," 2019. Annex to Parliamentary

A DNA profile is available in the DNA database. The AP considers this legitimate, taking into account the available case law.

Necessity in a democratic society and foreseeability

The presence of a legitimate purpose does not automatically mean that the interference is also necessary in a democratic society. An interference is considered 'necessary in a democratic society' if it meets a 'pressing social need'. The interference must be proportionate to the legitimate aim, and the reasons put forward by the national authorities to justify the interference must be 'relevant and sufficient'. See also the principle of proportionality outlined on page i of this advice (hereinafter: the framework).

The justification for the interference in the private life and the protection of personal data is the conviction for a crime of a certain severity. If biological material is taken from a suspect, that relationship is severed. Therefore, it must be assessed whether the infringement of the fundamental rights of suspects can be justified in another way. This is only the case if the infringement is proportional and strictly necessary in relation to the aim of the DNA Act. Reference is made to points two and three of the framework.

Regarding the (strict) necessity of processing biometric and genetic data (in this case: biological material) of suspects, the Court of Justice of the European Union (CJEU) summarized the following. The threshold for taking biological material from suspects is high. In assessing the strict necessity of taking DNA material from suspects intended for other procedures, all relevant circumstances must therefore be taken into account. Consider the nature and seriousness of the offense. Moreover, the taking of biological material is not permitted if the aim of the precautionary taking can be achieved in a less intrusive manner.

Regarding the foreseeability of regulations concerning the processing of DNA material, the ECHR has considered that clear, detailed rules must exist for the scope and application of biological material and/or DNA material, as well as safeguards regarding, among other things, the duration, storage, use, access by third parties, procedures for maintaining the integrity and confidentiality of data, and procedures for its destruction. See points 4 and 5 of the framework. The ECHR weighs all these aspects—including the legitimate purpose—in its considerations.

See, among others, *S. and Marper v. United Kingdom*, para. 100. ECHR June 22, 2017, app. no. 8806/12, para. 34 (*Aycaguer v. France*).

28 *S. and Marper*, para. 101.

29 CJEU January 26, 2023, C-205/21 (*U.S. v. Schluge*), para. 132. The CJEU assessed under Article 10 of Directive 2016/680, which stipulates that the processing of special categories of personal data by competent authorities, including the police and the public prosecutor's office, is only permitted when the processing is strictly necessary, is carried out with due regard for appropriate safeguards for the rights and freedoms of the data subject, and is permitted under Union law or national law.

See also the information from the Advisory Division of the Council of State, Annex to Parliamentary Documents 112016/17, 29279, no. 357.

31 *S. and Marper v. The United Kingdom*, para. 99. See also ECHR April 24, 1990, app. no. 11801/85, (*Kruslin v. France*), para. 33, ECHR May 4, 2000, app. no. 28341/95, (*Rotaru v. Romania*), para. 57-59; ECHR 2006, app. no. 54934/00, (*Weber and Saravia v. Germany*).

32 ECHR October 26, 2000, app. no. 30985/96, (*Hasan and Haush v. Bulgaria*), para. 84. "The level of precision required of domestic legislation - which cannot in any case provide forever, eventuality - depends to a considerable degree on the content of the instrument in question, the field it is designed

to cover and the number and status of those to whom it is addressed"; S. and Marper v. The United Kingdom, para. 99.

6/12

AUTHORITY

PERSONAL DATA

Date

Our reference

assessment of whether the intervention is necessary in a democratic society.³³ As the restriction intrudes deeper into private life, the ECHR imposes higher requirements on necessity and proportionality.

Benchmarks

In summary, the conservatory collection of biological material from suspects must meet the following conditions to comply with the principle of proportionality:³⁴

- The category of persons (in this case, suspects) from whom biological material may be collected must be delineated so that only relevant data is retained and there is no excessive retention in relation to the pursued goal;
- Access to the retained biological material and the purposes for which the biological material may later be used must be objectively limited;³⁶
- There must be clear rules determining the retention periods — differentiated where necessary — and limiting retention to what is necessary;³⁷
- There must be effective procedural safeguards to protect and secure the stored data to prevent inappropriate and unauthorized use of the data;³⁸
- The individual concerned must be able to invoke a legal remedy that could result in the destruction of the biological material.³⁹

Advice

Necessity of conservatory collection of biological material (1)

Assessing against the aforementioned conditions, the AP arrives at the following consideration. The infringement that the conservatory collection of biological material makes on the personal sphere of a suspect remains limited, as the biological material of suspects is conservatively retained and, in principle, may only be used for the creation of a DNA profile if the suspect has been convicted of an offense that falls under the scope of the current DNA Act. On the other hand, the infringement is not negligible, given the (still unknown) possibilities for the use of biological material in the future" and the fact that biological material contains a lot of sensitive information about a person, such as health, and biological material contains a unique genetic code about a person that is of great importance to the individual and his or her family members.⁴¹

"ECHR December 7, 2006, app. no. 29514/05 (Van der Velden v. The Netherlands); S. and Marper v. The United Kingdom, par. 99 and par. 105; ECHR June 22, 2017, app. no. 8806/12, (Aycaguer v. France), par. 34 and 36. The requirements that the ECHR imposes in this regard on the quality of the legal basis are closely related to the assessment of the necessity of the intervention in a democratic society. The ECHR increasingly emphasizes the evaluation of the procedure as a whole. See also M. Hirsch Bailin, p.10.

See also M. Hirsch Bailin, 'Advice on the assessment of the legal sustainability of alternative scenarios for the implementation of the DNA Research Act for Convicted Persons', 2019. Appendix to Parliamentary Documents J12018119, 32168, M.

" S. and Marper v. The United Kingdom, par. 103; ECHR April 18, 2013, app. no. 19522/09, (M.K. v. France), par. 35; ECHR June 4, 2013, app. no. 7841/08 and 57900/12 (Peruzzo and Martens v. Germany), (admissibility decision), par. 42; Aycaguer v. France, par. 37. See also: CJEU April 8, 2014, C-293/12 and C-594/12, ECLI:EU:C:2014:238 (Digital Rights Ireland Ltd/Seitlinger), par. 54 and 55. CJEU April 8, 2014, C-293/12 and C-594/12, ECLI:EU:C:2014:238 (Digital Rights Ireland Ltd/Seitlinger), par. 60-61.

" S. and Marper v. The United Kingdom par. 108-123.

" Aycaguer v. France, par. 38 and 44.

" Aycaguer v. France, par. 38 and 44.

a° S. and Marper v. The United Kingdom, par. 70-71, Van der Velden v. The Netherlands.

" S. and Marper v. The United Kingdom, par. 72.

7/12

AUTHORITY

PERSONAL DATA

Date

Our reference

The following question that must be answered is under what circumstances and with what safeguards the provisional collection of biological material is necessary and can be considered proportional in a democratic society. The AP particularly focuses on the delineation of the category of persons (in this case suspects) from whom biological material can be collected so that only relevant data is retained and there is no excessive retention in relation to the pursued goal.

In light of proportionality, various scenarios have been examined regarding the category of persons from whom provisional biological material is collected. First, a distinction has been made between the provisional collection of biological material from all suspects of a preliminary detention offense versus only suspects of a preliminary detention offense without a fixed residence or place of stay. The explanation states that the latter scenario is too vulnerable to implement, as it would miss part of the target group. It is indeed possible that a suspect indicates having a fixed residence or place of stay, but does not actually reside there.

The AP notes that research conducted shows that, in particular, the biological material of convicted individuals without an address in the Basic Registration of Persons (BRP) is missing. Research by the WODC indicates that in cases where convicted individuals do not have a BRP address but do have a foreign address, they are untraceable in 34% of cases. If no address is known at all, that percentage rises to 50%. Suspects with a BRP address are only untraceable in 1% of cases. In light of this, the AP concludes that only the scenarios in which (in principle) only biological material from persons without a BRP address meet the requirement that the provisional collection and processing of biological material is necessary in a democratic society and is thus limited to retaining only relevant data so that there is no excessive retention in relation to the pursued goal. This is also the case even if it means that the effectiveness rate of the provisional collection is (slightly) lower than 99%.

The AP concludes that the concept on the aforementioned point conflicts with points 2 and 3 of the framework and advises limiting the category of suspects who must provide provisional biological material to suspects without a BRP address or to substantiate why the provisional collection of biological material cannot be limited to suspects without a BRP address. In all other cases, biological material should only be collected after conviction in accordance with the current DNA Act.

Necessity of provisional collection of biological material (2)

It is proposed to collect biological material from all adult suspects of a crime for which a detention order can be issued. A limited number of exceptions are possible, which pertain to situations where biological material has already been collected, there is no longer any suspicion against someone, or a fine has already been imposed. The moment of collection is before the expiration of...

M. Goedvolk, J. Nijhuis, M. Sabiran, and W. Stapel, Report on Scenario Analysis of Provisional Collection of Biological Material from Suspects, Significant 2019 (Appendix to Parliamentary Documents /2018/19, 32168, M).

Despite the absence of a BRP address, it may be that a (foreign) residence address is known to the police. However, research by the WODC indicates that in cases where a convicted individual does not have a BRP address but does have a foreign address, these individuals are untraceable in 34% of cases, and in 50% of cases if no address is known at all.

Except for three exceptions, see Article 2, first paragraph, items b-d.

8/12

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AUTHORITY

PERSONAL DATA

Date

Our reference

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the period for detention for investigation or pre-trial detention, provided that there is still suspicion of a preliminary detention offense at that time.⁴⁶ It is stated that this regulation has an appropriate scope, contains sufficient procedural safeguards, and that the infringement on the personal privacy of suspects is minimized.⁴⁷

The category of persons from whom conservatory cell material is taken must — as explained in the legal framework — be strictly necessary in light of the objective of the DNA Act-V.⁴⁸ There must thus be room for an assessment at the individual level. Furthermore, the suspect must be able to file a legal remedy against the conservatory retention of his or her cell material, which may result in the removal of the cell material if the retention is no longer strictly necessary.

By taking conservatory cell material in almost all cases where an adult person is suspected of a preliminary detention offense, without a separate order or assessment being required, this cannot be complied with. Although there is a certain seriousness to the suspicion of a preliminary detention offense, it is not automatically established that the taking of cell material is strictly necessary. There is a reasonable chance that cell material will need to be removed because the suspect is not convicted, receives a penalty that does not fall under the scope of the DNA Act-V, or because one of the exceptions (Article 2, first paragraph, parts a and b of the DNA Act-V) applies. Thus, much more cell material is taken than is necessary because many suspects will not be convicted or for other reasons will not fall under the scope of the DNA Act-V.

The AP concludes that the draft is in conflict with points 2, 3, and 5 of the framework on the aforementioned points and advises that the draft be amended so that:

- Conservatory taking of cell material from all suspects (and thus suspects without a BRP address) will only take place after an individual assessment of the strict necessity thereof in light of the objective of the DNA Act-V.
- Conservatory taking of cell material is not ordered if one of the exceptions referred to in Article 2, first paragraph, part b of the DNA Act-V applies.
- Conservatory taking of cell material is not ordered if serious consideration must be given to the possibility that the suspect will not fall under the DNA Act-V in the event of a conviction, for example, because no custodial sentence or community service is imposed.
- The suspect can invoke a legal remedy against the decision to take conservatory cell material, with the aim of destroying the stored cell material.

"In the sense of Article 67, first paragraph, Code of Criminal Procedure.

"Explanation, paragraph 3.

"CJEU January 26, 2023, C-205/21 (USA versus Bulgaria), paras. 132-133.

"See M. Goedvolk, J. Nijhuis, M. Sabiran, and W. Stapel, Report on Scenario Analysis of Conservatory Taking of Cell Material from Suspects, Significant 2019 (appendix to Parliamentary Documents /2018/19, 32168, M).

9/12

AUTHORITY

PERSONAL DATA

Date

Our reference

Application of the DNA Research Act for Convicted Minors

In 2017, the UN Human Rights Committee ruled in two cases against the Netherlands that mandatory — generic — collection of biological material from a convicted minor is not proportional to the legitimate aim of preventing and detecting serious crimes. The Committee stated that it must be assessed on a case-by-case basis whether determining and processing the DNA profile of minors is

necessary.

The Supreme Court subsequently ruled that the age of the convicted individual must be taken into account when assessing whether an order for determining and processing a DNA profile can be issued, as it is reasonably likely that determining and processing the DNA profile, given the nature of the crime or the special circumstances under which the crime was committed, will not be significant for the prevention, detection, prosecution, and adjudication of criminal offenses of the convicted individual (Article 2, first paragraph, part b of the DNA Act). Following this ruling, the Public Prosecution Service established an assessment framework stating that the age of the suspect must always be considered in the aforementioned special circumstances. The explanatory note to the draft includes that "in addition to the existing assessment framework of the Public Prosecution Service, a legal limitation will also be imposed on the possibility of determining and processing DNA profiles of juvenile offenders." This limitation states that a DNA profile will only be determined and processed in the case of a community service order if a community service of 40 hours or more has been imposed.

As noted earlier, legislation must be clear and precise, and its application must be predictable for those to whom it applies. The interpretation of the exception in Article 2, first paragraph, part b, has changed over the years. Notwithstanding the improved protection of minors, this does not benefit legal certainty. The Authority believes it is necessary, in this context, that the draft provides clarity regarding the consideration of the age of the individual under the exception.

The Authority concludes that the draft creates a conflict with point 4 of the framework on this aspect. The Authority advises that the draft explicitly states that the age of the individual is taken into account when assessing special circumstances.

Lighter Forms of DNA Kinship Research Possible for Pre-Trial Detention Offenses

The draft aims to amend the provisions regarding DNA kinship research in the Code of Criminal Procedure. This provision is separate from the DNA Act; it concerns powers that can be employed during an ongoing investigation. According to Article 151da and 195g of the Code of Criminal Procedure, DNA kinship research can only be conducted if there is a suspicion of a crime punishable by imprisonment of eight years or more or a suspicion of one of the serious violent and sexual offenses listed in the law.

50 UN Human Rights Committee of July 18, 2017, Communication No. 2326/2013, N.K. v. Netherlands and UN Human Rights Committee of July 18, 2017, Communication No. 2362/2014, S.L. v. Netherlands.

10/12

AUTHORITY IT

PERSONAL DATA

Date

Our reference

According to the explanation, there are many different forms of DNA kinship research, ranging from comparing a DNA profile of a trace with all profiles in the DNA database, to comparing a DNA profile of a trace with one or a few DNA profiles that have been specifically taken in the context of the ongoing criminal investigation. Based on the current regulations, all these forms of DNA kinship research can only be conducted if there is suspicion of a crime as described above.

According to the explanation accompanying the draft, it is considered desirable that in cases where a DNA trace is only compared with one or a few DNA profiles, a lighter suspicion criterion should apply, namely suspicion of a preliminary detention offense. The reasoning for this is that when comparing with one or a few DNA profiles, the risk of involving innocent citizens is much less than when comparing with the majority of or the entire DNA database.

Legislation that infringes on the protection of personal data must be clear and precise, and its application must be predictable for those to whom it applies. Personal data must also be adequate, relevant, and limited to what is necessary for the purposes for which they are processed. This applies without prejudice to DNA kinship research, as potentially innocent people can come into view in DNA kinship research, and an indication pointing towards a specific person can simply arise from the fact

that someone in the family is suspected or convicted.

The relaxation regarding DNA kinship research is not clearly and precisely viewed in conjunction with the explanation, and the processing of personal data does not seem to be limited to what is necessary, for the following reasons.

The explanation states that suspicion of a preliminary detention offense (only) suffices for an order for DNA kinship research if the DNA profile of a trace is compared with one or a few DNA profiles.

However, the draft (the text of the law) does not correspond with this. The draft stipulates that the order for DNA research can be given in case of suspicion of a preliminary detention offense, provided that the DNA profile of a trace is compared with the majority or all DNA profiles. In that case (and only then), suspicion of a crime punishable by imprisonment of eight years or more, or suspicion of one of the serious violent and sexual offenses listed in the law, is required.

Thus, if it does not involve a comparison with the majority or all DNA profiles, suspicion of a preliminary detention offense is sufficient. This also applies to comparison with a large portion, albeit not the majority, of the DNA profiles in the DNA database.

The AP concludes that the draft on this point conflicts with point 4 of the framework. Given the risks associated with conducting DNA kinship research with more than one or a few profiles, the AP advises aligning the text of the third paragraph of Articles 151da and 195 of the Code of Criminal Procedure with the explanation, in the sense that suspicion of a preliminary detention offense only justifies that DNA kinship research is conducted based on one or a few DNA profiles, and that comparison with all DNA profiles can only take place in cases where suspicion of a crime punishable by imprisonment of eight years or more or suspicion of one of the serious violent and sexual offenses listed in the law is required.

Workload

The AP notes that the draft is not expected to necessitate additional efforts by the AP.

Disclosure of the advice

The AP intends to make this advice public no earlier than four weeks after its issuance on the website www.autoriteitpersoonsgegevens.nl. Unless otherwise notified, it assumes that there are no objections to this.

Yours sincerely,
Authority Personal Data,
Aleid Wolfsen
Chairman